丰田通商（上海）有限公司

TOYOTA TSUSHO (SHANGHAI) CO.,LTD E: Company

2nd floor,Wheelock Square,1717 West Nanjing Road, Shanghai 200040, China

发　票
COMMERCIAL INVOICE

INVOICE NO: XBJPN24077AFTC F: Invoice_No

DATE: September 15, 2024

TO: **TOYOTA TSUSHO (THAILAND) CO.,LTD.**
607 ASOKE-DINDAENG ROAD, KWAENG DINDAENG,
KHET DINDAENG, BANGKOK 10400 THAILAND
TERMS OF DELIVERY: CIF LAEM CHABANG, THAILAND

TERMS OF PAYMENT: BY T/T 55 DAYS AFTER B/L MONTH

PORT OF LOADING: SHANGHAI PORT,CHINA ***PORT OF DISCHARGE***: LAEM CHABANG, THAILAND

MARKS & NUMBERS	DESCRIPTIONS OF GOODS	QUANTITY (MT)	UNIT PRICE (USD/MT)	AMOUNT (USD)
	H: Part_Description	M: Quantity_Unit		N: Currency
JIANGYIN XING CHENG SPECIAL STEEL WORKS CO.,LTD.	HOT ROLLED STEEL ROUND BARS 38MnS6 J: Spec 71*6780MM K: Size 38MnS6 73*6780MM PO:PT647AFT051	L: Quantity 27.420 44.626	O: Unit price 1,116 1,116	P: Amount 30,600.720 49,802.616
TOTAL:		72.046		80,403.34

BANK NAME: MUFG BANK (CHINA) LTD. SHANGHAI BRANCH
BANK ADD: 20F, AZIA Center, No.1233, Lujiazui Ring Road, Pudong New District, Shanghai 200120,China
ACCOUNT NO: 041734
SWIFT CODE: BOTKCNSH

丰田通商（上海）有限公司

TOYOTA TSUSHO (SHANGHAI) CO.,LTD

2nd floor,Wheelock Square,1717 West Nanjing Road, Shanghai 200040, China

装 箱 单
PACKING LIST

INVOICE NO: XBJPN24077AFTC

DATE: September 15, 2024

TO: **TOYOTA TSUSHO (THAILAND) CO.,LTD.**
607 ASOKE-DINDAENG ROAD, KWAENG DINDAENG,
KHET DINDAENG, BANGKOK 10400 THAILAND
TERMS OF DELIVERY: CIF LAEM CHABANG, THAILAND

TERMS OF PAYMENT: BY T/T 55 DAYS AFTER B/L MONTH

PORT OF LOADING: SHANGHAI PORT,CHINA ***PORT OF DISCHARGE***: LAEM CHABANG, THAILAND

MARKS & NUMBERS	DESCRIPTIONS OF GOODS	QUANTITY (BUNDLE)	NET WEIGHT	GROSS WEIGHT
	E: Company HOT ROLLED STEEL ROUND BARS		G: Net_weight	
JIANGYIN XING CHENG SPECIAL STEEL WORKS CO.,LTD.	38MnS6 71*6780MM F: Part no.	15	27420 KGS	27420 KGS
	38MnS6 73*6780MM	25	44626 KGS	44626 KGS
	PO:PT647AFT051			
TOTAL:		40	72046 KGS	72046 KGS

TOYOTA TSUSHO (SHANGHAI) CO.,LTD 丰田通商（上海）有限公司

CA FORM 2021

Shipper
JIANGYIN XINGCHENG SPECIAL STEEL WORKS CO., LTD.
NO.297, BINJIANG (E) ROAD, JIANGYIN CITY, JIANGSU PROVINCE, CHINA
PC:214429

B/L No.
105206SH130

CARRIER: LYNUX SHIPPING LIMITED

BILL OF LADING

Shipped on board the vessel named herein in apparent good order and condition (unless otherwise indicated) the Goods or packages specified herein and to be discharged at the above mentioned port of discharge or as near thereto as the vessel may safely get and be always afloat.

The weight, measure, marks, numbers, quality, contents and value, being particulars furnished by the Shipper, are not checked by the Carrier on loading. The Shipper, Consignee and the Holder of this Bill of Lading hereby expressly accept and agree to all printed, written or stamped provisions, exceptions and conditions of this Bill of Lading, including those on the back hereof. One of the Bills of Lading duly endorsed must be surrendered in exchange for the Goods or delivery order.

In witness whereof, the Carrier or his Agents has signed Bills of Lading all of this tenor and date, one of which being accomplished, the others to stand void.

Shippers are requested to note particularly the exceptions and conditions of this Bill of Lading with reference to the validity of the Insurance upon their Goods.

Merchants agree the vessel has the liberty to call at any other ports for combine cargoes & bunkering, whether in geographical order or not, when below mentioned cargo is part cargo.

Consignee
TOYOTA TSUSHO (THAILAND) CO.,LTD.
607 ASOKE-DINDAENG ROAD, KWAENG DINDAENG, KHET DINDAENG, BANGKOK
10400 THAILAND

Notify Party
TOYOTA TSUSHO (THAILAND) CO.,LTD.
607 ASOKE-DINDAENG ROAD, KWAENG DINDAENG, KHET DINDAENG, BANGKOK
10400 THAILAND

TELEX RELEASE (1)
SHANGHAI JI TONG INT'L SHIPPING AGENCY CO., LTD.

Ocean Vessel	Voy. No.	Port of Loading
ROYAL SPARK	V.V105206	SHANGHAI PORT, CHINA

Port of Discharge
LAEM CHABANG, THAILAND

Marks / Numbers	No.of P'kgs or Units	Kind of packages or Units; Description of Goods	Gross Weight
SHIPPING MARKS: JIANGYIN XING CHENG SPECIAL STEEL WORKS CO.,LTD.	40 BUNDLES	HOT ROLLED STEEL ROUND BARS FREIGHT PREPAID	72.046 MT
			Measurement 9.2 CBM

TOTAL NUMBER OF PACKAGES OR UNIT (IN WORDS) TOTAL FORTY BUNDLES ONLY

Of which NIL shipped on deck at shipper/charterer's / receiver's risk and responsibility (to be include vessel's stability & seaworthiness) without liability on the owners/carrier for any expenses, delays loss or damage however caused.

FREIGHT & CHARGES	Revenue Tons	Rate	Per	Prepaid	Collect
REMARKS: ALL CARGOES STOCKED IN OPEN YARD BEFORE SHIPMENT.QUANTITY AS PER REPORT OF TALLY COMPANY.SHIPPER RESPONSIBLE FOR CARGO LOADING, STOWAGE,SECURING,QUALITY& QUANTITY UNKNOWN.					

Ex.Rate	Prepaid at	Payable at	Place & Date of issue
			SHANGHAI, CHINA 26 September 2024
	Total Prepaid in Local Currency	Number of Original B/L(s)	Signed for and on behalf of carrier
		ONE(1/1)	AS AGENT FOR THE CARRIER: LYNUX SHIPPING LIMITED

上海济通国际船务代理有限公司
SHANGHAI JI TONG INT'L SHIPPING AGENCY CO.,LTD.
AS AGENT FOR THE CARRIER

FULL TERMS OF THE CARRIER'S BILL OF LADING FORM

1. DEFINITIONS
(1) "Carrier'' means the Company stated on the front of this Bill of Lading as being the Carrier and on whose behalf this Bill of Lading has been signed.
(2) "Goods'' includes the cargo supplied by the Merchant and includes any Container not supplied by or on behalf of the Carrier.
(3) "Merchant'' includes the Shipper, Consignor, Consignee, Receiver, the Holder of this Bill of Lading, the Owner of cargo and any person entitled to possession of the cargo.

2. LAW AND JURISDICTION
(1) All claims and disputes arising under or in connection with this Bill of Lading shall be subject to the Chinese law, and any action against the Carrier, whether being found in contract or in tort, shall be submitted to Chinese Maritime Courts.
(2) Notwithstanding the provision of Clause 2(1), where carriage includes carriage to or from or through a port or place in the United States of America, this Bill of Lading shall be subject to the provisions of the US COGSA, which shall be deemed to have been incorporated herein and nothing herein contained shall be deemed a surrender by the Carrier of any of its rights, immunities, exceptions or limitations or an increase of any of its liabilities under US COGSA. The provision cited in the COGSA (except as may be otherwise specifically provided herein) shall also govern before loading and after discharging as long as the goods remain in the Carrier's custody of control.

3. PARAMOUNT CLAUSE
This Bill of Lading shall be subject to the Hague Rules contained in the International Convention for the Unification of Certain Rules of Law Relating to Bills of Lading, signed at Brussels on August 25, 1924. If any provision is repugnant to any extent to the Hague Rules, such provision shall be null and void to that extent but no further.

4. THE SCOPE OF CARRIAGE
The intended carriage shall not be limited to the direct route but shall be deemed to include any proceeding or returning to or stopping or slowing down at or off any ports or places for any reasonable purpose connected with the carriage including bunkering, loading, discharging, or other cargo operations and maintenance of Vessel and crew. The cargo loaded under this Contract is to be carried as part cargo, the Carrier shall have the liberty of restowing the cargo and loading and discharging other cargoes for the account of other Merchants for ports enroute or not enroute.

5. FORWARDING, SUBSTITUTE OF VESSEL,THROUGH CARGO AND TRANSHIPMENT
The said Vessel expected ready to load under this Charter party about the canceling date in the related Fixture Note as soon as her prior commitments have been completed. The Carrier shall be at liberty to carry the Goods or part thereof to its port of destination by other vessel or vessels either belonging to the Carrier or others, or by other means of transport proceeding either directly. Or indirectly to such port and to carry the Goods or part of them beyond its port of destination, and to tranship, lighter, land and store the Goods on shore or afloat and reship and forward same at the Carrier's expenses but at Merchant's risk. The responsibility of the Carrier shall be limited to the part of the transport performed by him on the vessel under his management.

6. PERIOD OF RESPONSIBILITY
(1)The responsibility of the Carrier shall commence from the time when the Goods are loaded on board the vessel and shall cease when they are discharged from the vessel. The Carrier shall not be liable for loss of or damage to the Goods before loading and after discharging from the vessel, howsoever such loss or damage arises.
(2) In case loading and/or discharging are effected by the Merchant at his expense(in which case the terms "FI'', "FO'' or "FIO'' are shown in this Bill of Lading as the case may be),the Carrier's responsibility shall, notwithstanding the preceding paragraph, commence when loading has been completed and/or cease when discharging has begun respectively, and shall be exonerated from any loss of or damage to or in connection with the Goods occurring during such loading and/or discharging, even if such loading and/or discharging are done with the assistance and/or advice of the Master/vessel's officers/crew, who in such cases, are deemed to be an agent(s) or employee(s) of the Merchant.

7. LIABILITY FOR PRE–AND ON–CARRIAGE
When the Carrier arranges pre–carriage of the cargo from a place other than the Vessel's Port of loading or on–carriage of the cargo to a place other than the Vessel's Port of discharge, the Carrier shall contract as the Merchant's Agent only and the Carrier shall not be liable for any loss or damage arising during any part of the carriage other than between the Port of loading and the Port of discharge even though the freight for the whole carriage has been collected by him.

8. LOADING, DISCHARGING AND DELIVERY
(1) Loading and discharging may commence without prior notice. If the Merchant fails to tender the cargo upon the vessel's arrival, the Carrier shall be entitled to leave the port without further notice and the Merchant shall be liable for dead freight, or the Carrier has the option to wait the cargo and detention/demurrage shall be payable by the Merchant from the vessel's arrival. If the Merchant failed to receive the cargo upon the Vessel's arrival, the Carrier shall be entitled to discharge the cargo into port custody at the sole risk and expense of the Merchant, if permitted by local regulation. Such discharge into port custody shall be deemed fulfilment of the contract. The Carrier has the option to wait until the Merchant are ready to receive the cargo and detention/demurrage shall be payable by the Merchant from the vessel's arrival.
(2)The Goods shall be supplied and taken delivery of by the Owner of the Goods as fast as the vessel can take and discharge, without interruption, by day and night, Sundays and holidays included and if required by Carrier, outside of ordinary working hours notwithstanding any custom of the port to the contrary and the Merchant shall be liable for all losses or damages whatsoever including detention/demurrage incurred in default thereof. The cargo is to be brought alongside/taken from the Vessel by dumping ashore and within the reach of the Vessel's gear and in the sequence required by the Master or the Carrier's Port Captain. If the Merchant requests and the Carrier agrees to receive/deliver cargo for loading/discharging directly from/to Merchant's trucks, rail wagons or lighters/barges, and delays, costs or liability due to Merchant supplied equipment shall be solely at Merchant's risk, time and expense.
(3) In addition, detention/demurrage shall also be paid by the Merchant, at the same rate in the related Fixture Note or US$30,000 per day if not mentioned, for any delay in waiting for loading or discharge at or off the port or berth, including time lost due to congestion, swell or tide, quarantine or similar restriction, shifting, renomination of the berth due to Merchant's request, restrictions to conduct cargo operations, impossibility to leave the berth after loading or discharge is completed or any other reason whatsoever and any consequences thereof. The Merchant shall alsobe liablefor any extraordinary costs while the vessel is on detention/demurrage.
(4) In addition to detention/demurrage charges resulting from waiting time/swell, the Merchants are also to be responsible for any additional stevedoring, port disbursement, bunker cost, Port Captain fees, shifting to additional berths, de–berthing and re–berthing cost whatsoever incurred from standby time
(5) Notwithstanding to any clause to be contrary, the liner terms is only the agreement on the cost payment but however all the cargo operations under the contract shall be free of any risk, liability and expense whatsoever to the Owners and the Charterers shall be responsible for the cost and time of removing the dunnage and lashing material at discharge port in case it is Free In terms.
(6) Any lighterage, lightering in or off ports of loading or ports of discharge shall be at Carrier's option and if so required, the Merchant shall arrange within 48 hours at their cost and risks, failing which detention/demurrage shall be payable by the Merchant.
(7) If the Goods are unclaimed during a reasonable time, or wherever the Goods will become deteriorated, decayed or worthless, the Carrier may, at his discretion and subject to his lien, and without any responsibility attaching to him, sell, abandon or otherwise dispose of such Goods solely at the risk and expense of the Merchant.
(8) All the Carrier's option, discretion and decision under this clause can be implemented whether declared in advance or not.

9. FREIGHT AND OTHER CHARGES
(1) Freight, whether paid or not, shall be considered as fully earned and due upon loading, non–returnable and non–deductible irrespective of whatever loss or damage may happen to the vessel and/or the cargo. Dead freight (=freight rate * cargo short shipped) to be paid in case no cargo or part cargo shipped at the load port. Unless otherwise specified, the freight, dead freight,detention/demurrage and other charges shall be paid by the merchant on demand and 9% interest per annum running from the fifth day thereafter.
(2) In addition the freight rate in the related Fixture note, the Merchant shall pay all dues, taxes, charges, fines, penalties, damages and/or losses levied on the Goods, vessel, freight and Carrier sustained or incurred in connection with the laws, regulations, rules and orders of any government or authorities including consular fees and all Suez or Panama Canal Charges and delay in total over 48 hours.
(3) The Merchant shall be liable for all costs, expenses and risk of fumigation, gathering and sorting loose cargo and weighing onboard, repairing damage to and replacing of packing due to excepted causes, and any extra handing of the cargo for any of the aforementioned reasons. The Merchant shall be specifically liable for all costs, expenses, losses and liabilities incurred due to non–approved or contaminated or infested material supplied by Merchant including all costs of transporting the cargo to another port, if required.
(4) Any additional insurance premium charged by the Vessel's underwriters for breaching trading limitations (IWL or INL or JWC listed area) and all anti–piracy precautions, including, but not limited to, armed guards, deviation and delays for picking up the armed guards and crew bonus to be for Merchants account and payable together with freight invoice.
(5) The freight rate in the Fixture note basis the Singapore bunker platts of the contract date and it shall be adjusted every USD0.25 per RT in case the Singapore bunker platts of loading date increase every USD10/MT.
(6) The freight rate in the Fixture noted basis the Baltic Indices stated in Howe Robinson Weekly Report of the contract date and it shall be adjusted pro rate in case the same size of the declared vessel Baltic Indices in Howe Robinson Weekly Report of loading date increase more than USD500 per day.
(7) Should the cargo to be loaded and discharged basis "Liner terms hook to hook", the Merchant to be responsible for all time and expenses related to any shore side stevedoring, including but not limited to, potential storage and hooking on/off. If the customs of the port is for all stevedoring costs for loading or discharging to be charged to the Carrier, 50% of such actual stevedoring shall represent hooking on/off and payable by the Merchants to the Carrier.
(8) The Shipper, Consignor, Consignee, Receiver, the Holder of the Bill of Lading, the Owner of cargo and any person entitled to possession of the cargo shall be jointly and severally liable to the Carrier for the payment of all freight and charges and for the performance of the obligation of each of them hereunder.

10. MARKS AND DESCRIPTION
(1) The Carrier shall not be liable for failure of or delay in loading and/or delivery unless the full packing list and description provided 10 bank days before vessel's arrival and the cargo marks shall have been clearly and durably stamped or marked upon the Goods or package(s) by the Merchant before shipment in letters and numbers not less than 5 centimeters high, together with the names of the port of discharge and / or destination.
(2) In no circumstances shall the Carrier be responsible for delivery in accordance with other than leading marks.
(3) The Merchant warrants to the Carrier that the marks on the Goods or package(s) correspond to the marks shown on this Bill of Lading and also in all respects comply with all laws and regulations in force at the port of discharge and/or destination, and shall indemnify the Carrier against all loss, damage, expenses, penalties and fines arising out of or resulting from incorrectness or incompleteness thereof.
(4) Goods which cannot be identified by marks and numbers, cargo sweepings, liquid residue, and any unclaimed Goods not otherwise accounted for shall be allocated for the purpose of completing delivery to the various merchants of goods of like character, in proportion to any apparent shortage, loss of weight or damage, and such Goods or parts thereof shall be accepted as full and complete delivery.
(5) The Carrier is entitled, at port of shipment and/or port of destination, to verify the quantity, weight, measurement and contents of the Goods as declared by the Merchant. If the weight, measurement and/or contents of such Goods as stated in the Bill of Lading turned out to be inconsistent with that of the Goods actually loaded, and the freight paid falls short of the amount which would have been due if such declaration had been correctly given, the Carrier is entitled to collect from the Merchant as liquidated damages to the Carrier double the amount of difference between the freight for the Goods actually shipped and that misstated.
(6) Any reference on the face hereof to marks, numbers, description, quantity, gauge, weight, measure, nature, kind, value and any other particulars or the Goods has been furnished by the Merchant and/or tallyman, and the Carrier shall not be responsible for the accuracy and cargo shortage found at the discharge ports thereof. The Merchant warrants to the Carrier that the particulars furnished are correct and shall indemnify the Carrier against all loss, damage, expenses, liability, penalties and fines arising out of or resulting from inaccuracy thereof.

11. PACKING, STOWAGE, ACCOMMODATION & LIFTING OF CARGO
(1) Any cargo loaded on deck is at Merchants risk and responsibility without liability on the part of the vessel/Carriers for any expenses, delays, loss or damage however caused and even if caused by Carriers negligence or un–seaworthiness of the vessel.
(2) All cargo is to be seaworthy packing and internally secured for ocean transportation, fully stackable, over–stowable and forkliftable without any restrictions, unless otherwise specified by the Merchants. All cargo is to be have the lifting, lashing, securing points and center of gravity clearly marked and certification accepted by the government and authority at both ends to be provided. The Merchants is responsible to ensure that cargo is provided with proper skids attached and if required all cradles used for securing the cargo are fit for the purpose and the cargo is suitably secured within the cradles. The Merchant shall fit the cargo and/or cradles as appropriate with suitable lifting lugs and sufficient lashing points for the cargo and/or cradle to be properly secured. If individual cargo item is not flat at their bottom, then a footprint sketch is required, and any timber/steel beams required to spread the weights to support the cargo to be for account of the Merchants.
(3) Any special required spreader bars, wires, lifting frames, beams, slings, cradles, saddles not already onboard the vessel shall be supplied at Merchant's time, expense & responsibility. Since the Vessel is not equipped with dehumidifiers and only has natural/electrical ventilation, the cargo is to be suitable packed for transportation and Carriers are not liable for any corrosion and/or discoloration and/or moisture and/or rust damage occurring from condensation.
(4) The Carrier shall have the right to stow cargo by means of container, trailers, transportable tanks, flats, pallets, or similar articles of transport used to consolidate goods.
(5) The Carrier shall have the right to carry containers, trailers, transportable tanks and covered flats, whether stowed by the Carrier or received by him in a stowed condition from the Merchants, on or under deck without notice to the Merchant.
(6) Any damage resulting, including any time lost thereby, from Merchants failure to provide adequate lifting, lashing, securing points and center of gravity, to be for Merchants time, expense & responsibility. Furthermore, Merchant shall be liable for any damage, including any personal injuries to the Vessel, her servants and/or equipment caused by their failure to provide the proper information.

12. LIEN
The Carrier shall have a lien on the Goods and any document relating thereto for freight, dead freight, demurrage, loss caused by detention and any other amount whatsoever payable by the Merchant under this Bill of Lading or any other contracts, and for General Average contributions for whomsoever due and for the cost of recovering the same, and for this purpose shall have the right to sell or otherwise dispose of the Goods. If on sale of the Goods, the proceeds fail to cover the amount due and the cost and expenses incurred, the Carrier shall be entitled to recover the deficit from the Merchant.

13. NOTICE OF LOSS OR DAMAGE, TIME BAR
(1) Unless notice of loss or damage and the general nature of such loss or damage be given in writing to the Carrier or his agent at the port of discharge before or at the time of the removal of the Goods into the custody of the person entitled to delivery thereof under the contract of carriage, such removal shall be prima facie evidence of the delivery by the Carrier of the Goods as described in the Bill of Lading.
(2) If the loss or damage is not apparent, the notice must be given within three days of the delivery.
(3) In any event the Carrier and the vessel shall be discharged from all liability in respect of loss or damage unless suit is brought within one year after delivery of the Goods or the date when the Goods should have been delivered.
In the case of any actual or apprehended loss or damage the Carrier and the Receiver shall give all reasonable facilities to each other for inspecting and tallying the Goods.

14. LIMITATION OF LIABILITY
(1) All claims for which the Carrier may be liable shall be calculated on the basis of the Merchant's net invoice cost, plus freight and insurance premium, if paid. In no event shall the Carrier be liable for any loss of possible profit or any consequential loss.
(2) The Carrier for any loss of or damage to the Goods shall be limited to an amount not exceeding 100 pounds sterling per package or freight unit unless the value of the Goods higher than the amount is declared in writing by the Shipper before receipt of the Goods by the Carrier and inserted in this Bill of Lading and extra freight paid as required. If the actual value of the Goods per package or per freight unit exceeds such declared value, the declared value shall nevertheless be deemed to be the value and the Carrier's liability if any, shall be the declared value and any partial loss or damage shall be adjusted pro rata on the basis of such declared value. Reference to the package limitation of 100 pounds sterling shall be deemed to mean the nominal value of the pounds sterling.
Where the Hague Rules or any legislation applying such Rules is not compulsorily applicable, the Carrier's liability shall not exceed US$2 per kilogramme of gross weight of the Goods lost, damaged or in respect of which the claim arises or the value of such Goods, whichever the least.

15. STEVEDORE DAMAGE
Notwithstanding to any clause to be contrary, the Charterers shall be responsible for damage (beyond ordinary wear and tear) to any part of the Vessel caused by Stevedores. Such damage shall be notified as soon as reasonably possible by the Master to the Charterers or their agents and to their Stevedores, failing which the Charterers shall not be held responsible. The Master shall endeavour to obtain the Stevedores' written acknowledgement of liability.
The Charterers are obliged to repair any stevedore damage prior to completion of the voyage, but must repair stevedore damage affecting the Vessel's seaworthiness or class before the Vessel sails from the port where such damage was caused or found. All additional expenses incurred shall be for the account of the Charterers and any time lost shall be for the account of and shall be paid to the Owners by the Charterers at the demurrage rate.

16. DANGEROUS GOODS,CONTRABAND
(1) The Merchant undertakes not to tender for transportation any Goods which are of a dangerous, inflammable, radioactive, and/or any harmful nature without previously giving written notice of their nature to the Carrier and marking the Goods and the container or other covering on the outside as required by any laws or regulations which may be applicable during the carriage.
(2) Whenever the Goods are discovered to have been shipped without complying with the subclause (1) above or the Goods are found to be contraband or prohibited by any laws or regulations of the port of loading, discharge or call of any place or waters during the carriage, the Carrier shall be entitled to have such Goods rendered innocuous, thrown overboard of discharged of otherwise disposed of at the Carrier's discretion without compensation and the Merchant shall be liable for and indemnify the Carrier against any kind of loss, damage or liability including loss of freight, and any expenses directly of indirectly arising out of or resulting from such shipment.
(3) If any Goods shipped complying with the subclause (1) above become a danger to the ship or cargo, they may in like manner be rendered innocuous, thrown overboard or discharged or otherwise disposed of at the Carrier's discretion without compensation except to General Average, if any.

17. CARGO IN CONTAINERS
(1) Goods may be stowed by the Carrier or his agents or servants in containers and containers whether stowed as aforesaid or received fully stowed may be carried on or under deck without notice. The Carrier's liability for such carriage shall likewise be governed by the terms and conditions of this Bill of Lading irrespective of Clause 18 hereof notwithstanding the fact that the Goods are being carried on deck and the Goods shall contribute to General Average and shall receive compensation in General Average.
(2) If a container has not been filled, packed, stuffed or loaded by the Carrier, the Carrier shall not be liable for loss of or damage to the contents and the Merchant shall indemnify the Carrier against any injury, loss, damage, liability or expense incurred by the Carrier if such injury, loss, damage, liability or expense has been caused by:
1) the manner in which the container has been filled, packed, stuffed or loaded; or
2) the unsuitability of the contents for carriage in containers; or
3) the unsuitability or defective condition of the container which would have been apparent upon reasonable inspection by the Merchant at or prior to the time the container was filled, packed, stuffed or loaded.
If a container which has not been filled, packed, stuffed or loaded by the Carrier is delivered by the Carrier with the seal intact, such delivery shall be deemed as full and complete performance of the Carrier's obligation hereunder and the Carrier shall not be liable for any loss of or damage to the contents of the container. The Shipper shall inspect containers before stuffing them and the use of the containers shall be prima facie evidence of their being sound and suitable for use.

18. TIMBER
(1) Any statement in this Bill of Lading to the effect that timber has been shipped "In apparent good order and condition" does not involve any admission by the Carrier as to the absence of stains, shakes, splits, holes or broken pieces, for which the Carrier accepts no responsibility.
(2) And the Carrier shall only be responsible for bundles, but not for pieces, as the Carrier has no reasonable means of checking the latter.

19. IRON AND STEEL
(1) Every piece of iron and Steel is to be distinctly and permanently marked with oil paint and every bundle securely fastened, distinctly and permanently marked with oil paint and metal tagged, by the Merchant, so that each piece or bundle can be distinguished at port of discharge. If the Merchant fails to meet the aforesaid requirements, the Carrier shall neither be responsible for correct delivery nor liable for expense arising therefrom. Notwithstanding anything to be contrary, should the Bill of Lading requested to be inserted weight, pieces, bundles, packages or similar accordance with the tally and/or Merchant figures, Merchant to be responsible for any cargo shortage at the discharge port.
(2) Any statement hereon that steel or metal goods of any description have been shipped "In apparent good order and condition" does not involve any admission by the Carrier as to the absence of rust or sweat/fresh water damage or scratch or chafe or twist or other deterioration whatsoever between and along the edges of tinplates, galvanized iron, pipe, beam, bar, wire rod or metal sheets for which the Carrier accept no responsibility.

20. BULK/BAG CARGO, GOODS TO MORE THAN ONE CONSIGNEE
(1) Any reference to the weight and quantity in this Bill of Lading shall be deemed to be for reference only, but shall constitute in no way evidence against the Carrier, the Merchant shall indemnify and hold the Carrier harmless from any claims arising from the weight and quantity in the Bill of Lading.
(2) Where bulk/bag cargo or Goods without clear marks or with the same marks or Merchants failed to separate the cargo and/or mixture loading are shipped to more than one Consignee, the Merchant shall jointly and severally bear any expense or loss in dividing the Goods or parcels and any deficiency shall fall upon them in such proportion on the Carrier's option.

21. FUMIGATION
In the event of fumigation of Goods on board for whatsoever reason, the Carrier shall never be liable for damage to Goods and/or crew and/or vessel without actual proof of the Carrier's personal negligence proved, and all expenses, time and risks at merchant's account.

22. OPTION OF PORTS
The optional port for discharging must be declared to the Carrier not later than 48 hours before the vessel's arrival of turning point of the route. In the absence of such declaration the Carrier may select to discharge at any optional port and the contract of carriage shall then be considered as having been fulfilled. Any option must be for the total quantity of Goods under this Bill of Lading.

23. GENERAL AVERAGE AND NEW JASON CLAUSE
(1) General Average shall be adjusted, stated and settled according to the York–Antwerp Rules,1974, at any port or place at the Carrier's option.
(2) In the event of accident, danger, damage or disaster before or after commencement of the voyage, resulting from any cause whatsoever whether due to negligence or not, for which, or for the consequence of which the Carrier is not responsible, by statute, contract or otherwise, the Goods, Shippers, Consignees or Owners of the Goods shall contribute with the Carrier in General Average to the payment of any sacrifices losses or expenses of General Average nature that may be made or incurred and shall pay salvage and special charges incurred in respect of the Goods. If a salving ship is owned or operated by the Carrier, salvage shall be paid for as fully as if the said salving ship or ships belonged to strangers, Such deposit as the Carrier or his agents may deem sufficient to cover the estimated contribution of the Goods and any salvage and special charges thereon shall, if required, be made by the Goods, Shippers, Consignees or Owners of the Goods to the Carrier before delivery.

24. BIMCO CLAUSES
The following BIMCO clauses or their latest unedited versions, as applicable at the time of signing the Fixture Note, are deemed to be incorporated into this contract.
–International Group P&I Clubs/BIMCO Himalaya Clause for bills of lading and other contracts 2014
–Both to Blame Collision Clause
–Ship–to–Ship Transfer Clause for Dry Bulk Voyage Charter Parties 2015
–Stoppage of Canals & Waterways Clause 1968 and 2 days filled in the blanks
–Infectious or Contagious Diseases Clause for Voyage Charter Parties 2015
–Sanctions Clause for Voyage Charter Parties 2020 and subclause (b) deleted
–EU Advance Cargo Declaration Clause for Voyage Charter Parties 2012
–North American Advance Cargo Notification Clause for Voyage Charter Parties 2016
–ISPS/MTSA Clause for Voyage Charter Parties 2005
–Laytime Definitions for Charter Parties 2013
–BIMCO Cancelling Clause 2002 (Code Name: CANCELCON 2002)
– P. & I. Bunker Deviation Clause 1948
–Piracy Clause for Singale Voyae Charter Parties 2013
–War Risks Clause for Voyage Chartering 2013
–Ice Clause for Voyage Charter Parties 2005

CITIC PACIFIC SPECIAL STEEL

JIANGYIN XING CHENG SPECIAL STEEL WORKS CO., LTD.

NO.297, BINJIANG (E) ROAD, JIANGYIN CITY, JIANGSU PROVINCE, CHINA PC:214429

QUALITY CERTIFICATE

Certificate No: 419274

TO:TOYOTA TSUSHO (SHANGHAI) CO., LTD.
2ND FLOOR, WHEELOCK SQUARE, 1717 WEST NANJING ROAD, SHANGHAI
DESCRIPTION OF GOODS:HOT ROLLED STEEL ROUND BARS
CONTRACT NO.:XBJPN24077AFT INVOICE NO.:XBJPN24077AFTC

Batch No.	Grade	Heat No:	Size(mm)	Pieces	Bundles	Weight(MT)		Delivery Condition
I2419632	38MnS6	E22407659XX	71	129	15	27.42		Hot rolled

I、 Chemical Composition:(%):

Ladle	C:0.38	Si:0.55	Mn:1.42	P:0.018	S:0.048	Cu:0.03	Ni:0.04	Cr:0.14	Mo:0.02	Al:0.013	Ti:0.002
	N:0.0127	O:0.0007	*0040:0.748	*0041:2.94							

II、Microstructure Examination:

1、Grain Size\Grade : 7.5 2、Decarburized Layer\mm : 0.17
3、Bands\Grade : OK

III、NDT:

1、UT :GOOD 2、MFLT :GOOD

IV、Dimensions,Appearance and Surface Quality:

1、dimensions,appearance and surface quality :good

DATE:	INSPECTOR:	MANAGER OF INSPECTION:		
2024/9/13		Zhang Ming		WARRANTY DEDICATED JIANGYIN XINGCHENG SPECIAL STEEL WORKS CO.,LTD. INSPECTION

NOTE:

No impermissible macro-structural defects,such as flakes,subsurface bubbles and macro inclusions are available.;When there is any complain,you are kindly requested to mark the Steel Grade,Heat No.,Size,Delivery Data,Causes and ,materials in the condition.;This certificate is wrritten according to EN 10204 3.1;;材料的表面质量和外形尺寸均合格 Surface quality and shape size of material are all qualified 興澄二期/日系销售;*0040=Ceq;*0041=Beq

CITIC PACIFIC SPECIAL STEEL

JIANGYIN XING CHENG SPECIAL STEEL WORKS CO., LTD.

NO.297, BINJIANG (E) ROAD, JIANGYIN CITY, JIANGSU PROVINCE, CHINA PC:214429

QUALITY CERTIFICATE

Certificate No: 419275

TO:TOYOTA TSUSHO (SHANGHAI) CO., LTD.
2ND FLOOR, WHEELOCK SQUARE, 1717 WEST NANJING ROAD, SHANGHAI
DESCRIPTION OF GOODS:HOT ROLLED STEEL ROUND BARS
CONTRACT NO.:XBJPN24077AFT INVOICE NO.:XBJPN24077AFTC

Batch No.	Grade	Heat No:	Size(mm)	Pieces	Bundles	Weight(MT)		Delivery Condition
I2419615	38MnS6	E22407659XX	73	200	25	44.626		Hot rolled

I、 Chemical Composition:(%):

Ladle	C:0.38	Si:0.55	Mn:1.42	P:0.018	S:0.048	Cu:0.03	Ni:0.04	Cr:0.14	Mo:0.02	Al:0.013	Ti:0.002
	N:0.0127	O:0.0007	*0040:0.748	*0041:2.94							

II、Microstructure Examination:

1、Grain Size\Grade : 7.5 2、Decarburized Layer\mm : 0.35
3、Bands\Grade : OK

III、NDT:

1、UT :GOOD 2、MFLT :GOOD

IV、Dimensions,Appearance and Surface Quality:

1、dimensions,appearance and surface quality :good

DATE:	INSPECTOR:	MANAGER OF INSPECTION:		
2024/9/13		Zhang Ming		WARRANTY DEDICATED JIANGYIN XINGCHENG SPECIAL STEEL WORKS CO.,LTD. INSPECTION

NOTE:

No impermissible macro-structural defects,such as flakes,subsurface bubbles and macro inclusions are available.;When there is any complain,you are kindly requested to mark the Steel Grade,Heat No.,Size,Delivery Data,Causes and ,materials in the condition.;This certificate is wrritten according to EN 10204 3.1;;材料的表面质量和外形尺寸均合格 Surface quality and shape size of material are all qualified 興澄二期/日系销售;*0040=Ceq;*0041=Beq